



Bill Number: S.B. 1099

Petersen Floor Amendment

**Reference to: JUDICIARY AND ELECTIONS S/E
Committee Amendment**

Amendment drafted by: Zack Dean

FLOOR AMENDMENT EXPLANATION

1. Requires a defamation action involving a defamatory statement that is published on the internet to be commenced within one year of the date that the person removes the defamatory statement from the internet site or internet-based platform where the person originally published the defamatory statement.
2. Defines *internet-based platform* as:
 - a) a digital service that facilitates user interaction, content creation or information exchange;
 - b) a social media service;
 - c) a content sharing service; or
 - d) a cloud based service.
3. Removes the specification that a plaintiff's showing in certain defamation cases is subject to appellate review.
4. Makes technical changes.

PETERSEN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1099
(Reference to JUDICIARY AND ELECTIONS S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 12, chapter 6, article 6, Arizona Revised
4 Statutes, is amended by adding section 12-651.01, to read:

5 12-651.01. Defamation; statute of limitations; definitions

6 A. A PERSON COMMITS DEFAMATION IF THE PLAINTIFF IS A PRIVATE
7 FIGURE^[1.] ~~[AND]~~ THE MATTER IS OF PRIVATE CONCERN AND THE PLAINTIFF SHOWS
8 ALL OF THE FOLLOWING EXIST:

9 1. THE PERSON PUBLISHES A STATEMENT THAT IS:

10 (a) PROVABLE AS FALSE.

11 (b) REASONABLY PERCEIVED AS STATING ACTUAL FACTS ABOUT THE
12 PLAINTIFF RATHER THAN IMAGINATIVE EXPRESSION OR RHETORICAL HYPERBOLE.

13 ~~[1.]~~ ^[2.] THE PERSON MAKES THE STATEMENT WITH KNOWLEDGE OF ITS
14 FALSITY, ACTS WITH RECKLESS DISREGARD OF THE STATEMENT'S FALSITY OR
15 NEGLIGENTLY FAILS TO ASCERTAIN THE STATEMENT'S FALSITY.

16 ~~[2.]~~ ^[3.] THE STATEMENT, WHEN EXAMINED WITHIN THE FULL CONTEXT IN
17 WHICH IT WAS MADE, INJURES THE PLAINTIFF'S REPUTATION BY DOING ANY OF THE
18 FOLLOWING:

19 (a) IDENTIFYING THE PLAINTIFF BY NAME.

20 (b) INCLUDING A DESCRIPTION OF OR REFERENCE TO THE PLAINTIFF SO
21 THAT THOSE WHO HEAR OR READ THE STATEMENT REASONABLY UNDERSTAND THE
22 PLAINTIFF TO BE THE SUBJECT OF THE STATEMENT.

23 (c) IMPLYING A CLEARLY DEFAMATORY MEANING THAT, WHEN EXAMINED
24 WITHIN ITS CONTEXT, CAUSES THE AVERAGE PERSON TO PERCEIVE A DEFAMATORY
25 MESSAGE.

1 B. A PERSON COMMITS DEFAMATION IF THE PLAINTIFF IS A PRIVATE
2 FIGURE[.] [~~AND~~] THE MATTER IS OF PUBLIC CONCERN AND THE PLAINTIFF SHOWS
3 ALL OF THE FOLLOWING EXIST:

4 1. THE PERSON PUBLISHES A STATEMENT [THAT] THE PERSON KNOWS TO BE
5 FALSE, ACTS WITH RECKLESS DISREGARD OF THE STATEMENT'S FALSITY OR
6 NEGLIGENTLY FAILS TO ASCERTAIN THE STATEMENT'S FALSITY.

7 2. THE PERSON PUBLISHES A STATEMENT THAT, WHEN EXAMINED WITHIN THE
8 FULL CONTEXT IN WHICH IT WAS MADE, INJURES THE PLAINTIFF'S REPUTATION BY
9 DOING ANY OF THE FOLLOWING:

10 (a) IDENTIFYING THE PLAINTIFF BY NAME.

11 (b) INCLUDING A DESCRIPTION OF OR REFERENCE TO THE PLAINTIFF SO
12 THAT THOSE WHO HEAR OR READ THE STATEMENT REASONABLY UNDERSTAND THE
13 PLAINTIFF TO BE THE SUBJECT OF THE STATEMENT.

14 (c) IMPLYING A CLEARLY DEFAMATORY MEANING THAT, WHEN EXAMINED
15 WITHIN ITS CONTEXT, CAUSES THE AVERAGE PERSON TO PERCEIVE A DEFAMATORY
16 MESSAGE.

17 3. THE PUBLISHED STATEMENT IS BOTH:

18 (a) PROVABLE AS FALSE.

19 (b) REASONABLY PERCEIVED AS STATING ACTUAL FACTS ABOUT THE
20 PLAINTIFF RATHER THAN IMAGINATIVE EXPRESSION OR RHETORICAL HYPERBOLE.

21 C. A PERSON COMMITS DEFAMATION IF THE PLAINTIFF IS A PUBLIC
22 FIGURE[.] [~~AND~~] THE MATTER IS OF PUBLIC CONCERN AND THE PLAINTIFF SHOWS
23 ALL OF THE FOLLOWING EXIST:

24 1. THE PERSON PUBLISHES A STATEMENT [THAT] THE PERSON KNOWS TO BE
25 FALSE OR ACTS WITH RECKLESS DISREGARD OF THE STATEMENT'S TRUTH.

26 2. THE PERSON PUBLISHES A STATEMENT THAT, WHEN EXAMINED WITHIN THE
27 FULL CONTEXT IN WHICH IT WAS MADE, INJURES THE PLAINTIFF'S REPUTATION BY:

28 (a) IDENTIFYING THE PLAINTIFF BY NAME.

29 (b) INCLUDING A DESCRIPTION OF OR REFERENCE TO THE PLAINTIFF SO
30 THAT THOSE WHO HEAR OR READ THE STATEMENT REASONABLY UNDERSTAND THE
31 PLAINTIFF TO BE THE SUBJECT OF THE STATEMENT.

32 (c) IMPLYING A CLEARLY DEFAMATORY MEANING THAT, WHEN EXAMINED
33 WITHIN ITS CONTEXT, CAUSES THE AVERAGE PERSON TO PERCEIVE A DEFAMATORY
34 MESSAGE.

35 3. THE STATEMENT IS BOTH:

36 (a) PROVABLE AS FALSE.

37 (b) REASONABLY PERCEIVED AS STATING ACTUAL FACTS ABOUT THE
38 PLAINTIFF RATHER THAN IMAGINATIVE EXPRESSION OR RHETORICAL HYPERBOLE.

1 ~~[D. THE PLAINTIFF'S SHOWING PURSUANT TO SUBSECTIONS B AND C OF THIS~~
2 ~~SECTION IS SUBJECT TO APPELLATE REVIEW.]~~

3 [D. A DEFAMATION ACTION UNDER THIS SECTION INVOLVING A DEFAMATORY
4 STATEMENT THAT IS PUBLISHED ON THE INTERNET SHALL BE COMMENCED WITHIN ONE
5 YEAR FROM THE DATE THE PERSON REMOVES THE DEFAMATORY STATEMENT FROM THE
6 INTERNET SITE OR INTERNET-BASED PLATFORM WHERE THE PERSON ORIGINALLY
7 PUBLISHED THE DEFAMATORY STATEMENT.]

8 E. FOR THE PURPOSES OF THIS SUBSECTION:

9 1. "INTERNET" HAS THE SAME MEANING PRESCRIBED IN SECTION 18-501.

10 2. "INTERNET-BASED PLATFORM" INCLUDES:

11 (a) A DIGITAL SERVICE THAT FACILITATES USER INTERACTION, CONTENT
12 CREATION OR INFORMATION EXCHANGE.

13 (b) A SOCIAL MEDIA SERVICE.

14 (c) A CONTENT SHARING SERVICE.

15 (d) A CLOUD BASED SERVICE.]"

16 Enroll and engross to conform

17 Amend title to conform

WARREN PETERSEN

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